

Based on the evidence presented, there does not appear to be any dispute that Remedy Room has tax issues that could potentially lead to additional tax assessments and penalties. However, the evidence also shows that the majority (if not all) of these issues occurred prior to the appointment of Remedy Room's new payroll company, accountant, and Mr. Roopenian/Green Spring, and that these issues are being addressed by the professionals hired by Remedy Room. (Altstadt Decl. at 7, 18, 22-32, 36-38, 49-53, 56-63, 66-75, Schedules 3, 4; Hewitt Decl. at ¶¶ 17-21, 27-29, 31-34; Roopenian Decl. at ¶¶ 2-9.) Thus, Defendants have not established a risk of continuing harm due to Hewitt's alleged mismanagement of Remedy Room. Additionally, to the extent Wesley is required to pay additional tax assessments and/or penalties due to Hewitt's mishandling of Remedy Room's finances, he can seek monetary damages from Hewitt. Accordingly, the motion is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2305039	TEMECULA PETROLEUM INC. VS TEMECULA PREMIUM GASOLINE	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS AND REQUEST FOR SANCTIONS

Tentative Ruling:

PROOF OF SERVICE: Proper

The hearing is **CONTINUED** so that the parties are to meet and confer telephonically.

Specifically, the parties are ordered to address the scope of the RFPs seeking communications regarding the operation of the business between TPG and various individuals, which appear to be overbroad as drafted. The parties are to file a joint statement regarding the meet and confer efforts and results thereof at least ten days prior to the continued hearing.